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Court

SINDH HIGH COURT

Date

2009-10-02

Appeal No.

CONSTITUTIONAL PETITIONS NOS. S-107 AND 13 OF 2008

Judge

SHAHID ANWAR BAJWA

Parties

MST. MUSSARAT AND 2 OTHERS—PETITIONERS VERSUS MUHAMMAD NAEEM AND ANOTHER RESPONDENT

Lawyers

MIRZA SARFRAZ AHMED FOR PETITIONER (IN C.P. NO.S-13 OF 2008) AND FOR RESPONDENT (IN C.P. NO.S-107 OF 2008).SYED FAZAL HASSAN JILLANI FOR PETITIONER (IN C.P.NO.S-107 OF 2008) AND FOR RESPONDENT (IN C.P. NO.S-13 OF 2008).

Statutes

ADMINISTRATION OF JUSTICE WEST PAKISTAN FAMILY COURTS ACT (XXXV OF 1964) - S. 5 CONSTITUTION OF PAKISTAN (1973) - ARTICLE 199

Judgment

SHAHID ANWAR BAJWA, J.—By this order I intend to decide Constitution Petition No. S-13 of 2008 (Muhammad Naeem v. Mst.

Musarrat & others) and Constitutional Petition No. 107 of 2008 (Mst. Musarrat v. Muhammad Naeem). Both these petitions have arisen out of the same order.

2. Mst. Musarrat is petitioner in C.P.No.S-107/2008 and Muhammad Naeem is respondent No.1 in that petition. Although this order shall decide both the petitions I shall refer Mst. Musarrat as the petitioner and Muhammad Naeem as the respondent.

3. Brief facts not disputed between the parties are that a marriage was contracted between the petitioner and respondent on 22-2-1998. Very soon thereafter relationship between the parties turned sour and it is stated by the petitioner, that she was turned out of her husband's house in July 1999. Eventually petitioner filed suit for Khula bearing Suit No.489/2000. The said suit was decided in favour of the petitioner by Illrd Family Judge Karachi East vide judgment dated 28-6-2001, decree was issued accordingly on 5-7-2001 and the marriage was dissolved.

Petitioner also filed suit for recovery of dowry articles. The suit was registered as Family Suit No. 914/2001 and vide order dated 25-1-2003 the suit was decided and the petitioner was held entitled to receive back her dowry articles. She was however held not entitled to receive valuation .of her dowry articles. Being aggrieved by this order appeal was filed by the respondent. The appeal was registered as Family Appeal No.36/2003. The appeal, was accepted, order of Family Judge was set aside and the matter was remanded to the Family Court for passing fresh judgment, keeping in view all the evidence available on record.

4. During second round of litigation an application for permission to produce original documents was filed by the petitioner. It was stated in the application that either instead of original duly signed list, photocopies of unsigned duplicate of the list were filed. It was sought through the application to place on record the signed copies of the first six pages of list of dowry articles. Counter-affidavit to this application was filed.

Vide order dated 23-9-2005 while 7th page of the list was held to be a list of gift items and not dowry articles. Consequently first six pages were brought on record. Thereafter on 26-11-2007 the suit was decided as follows:~

“In light of the above discussion made on issues Nos. 1, 2 ,3 & 4 are that the plaintiff is entitled to receive back her dowry articles as per list annex ‘PI to P6’ discussed, alternatively she shall be entitled to receive the valuation of her mentioned dowry articles in annex ‘PI to P6’ amounting to Rs. 150,000 only.”

5. Appeal was filed and the learned Appellate Court vide order dated 26-11-2007 accepted the appeal in the following terms:—

“Hence in view of above my humble opinion that the respondent has failed to prove that her parents given her dowry articles as per list Exh.P/24. However, the appellant admitted that some articles were given as dowry and he is ready to return the same and the page of list of dowry written in handwriting was duly signed by Yasin therefore, respondent is entitled only for the recovery of her dowry articles as per page of list which is written in handwriting and is signed by one Yasin. The impugned judgment is therefore modified to the extent of above.”

6. The learned counsel for the petitioner has assailed the order of the Appellate Court on primarily four grounds, (i) According to him the - learned appellate Court has held that the petitioner has not been able to show any source of income from which the said dowry articles were purchased by her father, (ii) No independent witness has been produced to prove of purchase of dowry articles, (iii) While 7th page of the list of dowry articles (which is handwritten page) bears signature of uncle of the respondent, the first six pages which are typed pages do not bear any signature. The learned Appellate Court in this regard has failed to take into consideration the documents produced with the application referred to earlier, (iv) That evidence was led by the petitioner. However, witnesses of the petitioner was not cross-examined and no evidence whatsoever in rebuttal was led. It is contended in that view of this situation the trial Court has rightly accepted the evidence.

7. In support of his contention that it is not a requirement that an independent witness be produced in family related matters, the learned counsel relied upon Muhammad Saleem Akhtar v. Judge, Family Court and others 2004 YLR 2541. He further relied upon Zubair Akbar v. Mst.

Mehreen Hay at and others 1992 CLC 1940. In support of the contention that unchallenged evidence should have been accepted, the learned counsel relied upon Saifur Rehman v. Anarkali and 2 others, 2006 MLD 563. In support of his contention that the Family Court can award compensation in lieu return of dowry articles, the learned counsel relied upon Muhammad Akram v. Mst. Shahida Parveen and others PLD 2004 Lah 279, Major Milton Godwin Shamas v. Mst. Crenza Samuel, NLR 1985 SCJ 128 and Ashiq Ali v. Mst. Rasoolan Bibi, NLR 1992 Civil 542. The learned counsel consequently prayed that the order of the learned Family Court is in accordance with the evidence and the law and therefore order of the Appellate Court be set aside and order of the Family Judge be up-held.

8. Learned counsel for the respondent in rebuttal primarily raised the following points

(i) That in the first round of litigation the appellate Court had directed the trial Court, while remanding the matter for passing fresh judgment keeping in view all the evidence available on the record.

(ii) The trial Court could not have taken into consideration documents submitted afterward. He further submitted that the order dated 23-9- 2005 passed by the learned Family Judge on application for permission to produce the original documents clearly stated that P7 is not a dowry item and P1 to 6 were taken on record. In spite of this the learned Appellate Court, in its order allowed return of dowry items mentioned in the same P 7. Thus, though the trial Court had held the items mentioned in P 7 were not dowry items but were gift items, the Appellate Court without recording any reason had rendered the findings that the petitioner is entitled to return of items stated in P7.

(iii) The learned counsel relied upon Manzoor Hussain Khan v. Mst. Asia Begum and 21 others, 1990 CLC 1014 and Siraj Din v. Mst. Jamiian and another PLD 1997 Lahore 633 to contend that petitioner had to stand on her own legs and just cannot carry the case on account of no cross-examination and no evidence in rebuttal by the respondent.

9. I have considered the arguments advanced by the learned counsel and have also gone through the record as well proceedings of the case.

Before I proceed further a few words about the judgments cited by the parties.

10. In Muhammad Saleem Akhtar's case decided by an Honourable Single Judge of Lahore High

Court, it was a suit for recovery of dowry articles and the amount was stated in the suit. It was contended by the petitioner/respondent in that matter that since no one had appeared to prove the preparation of that list, the solitary statement of the plaintiff was incorrectly believed by the learned Family Judge. The High Court held the list of dowry articles if exhibited in evidence without its scribe, no grievance could be made as to its inadmissibility or its having not been brought on the record in accordance with provisions of Qanun-e-Shahadat Order, 1984. It was further held that it was not necessary in all cases that more than one witness should be produced to prove the case. Siafur Rehman's case was decided by the Division Bench of Peshawar High Court. It was against a suit arising out of family matter and for recovery of dowry articles. In that matter the plaintiff appeared as her own witness and also produced her father and maternal uncle who had fully substantiated her claim. Since evidence had gone un-rebutted, Division Bench of Peshawar High Court did not interfere with findings arrived at by the lower forums. In the third mentioned Zubair Akbar's case, it was a suit for dissolution of marriage. A Single Judge of Lahore High Court after closure of evidence of the wife and after a couple of adjournments were granted to the husband, closed his side. It was held that matter of adjournment and closing of evidence is within discretion of the Court and such discretion had been reasonably and judiciously exercised by the Court. Nothing turns on in Ashiq Ali's case.

11. The case law cited by the respondent in rebuttal is in respect of provisions of the Qanun-e-Shahadat Order, 1984. They pertain to execution of documents and proof regarding execution of such documents. The learned counsel very frankly conceded that under section 17 of the Family Courts Act, 1964, provisions of Qanun-e-Shahadat Order, 1984 are not applicable to proceedings before the Family Court.

Therefore the case law is distinguishable.

12. The bone of contention between the parties is 7 pages of documents produced by the petitioner as Exhibit P/24. When these documents were originally produced the copies did not bear signature of any recipient. When the matter was remanded to the trial Court by the Appellate Court, through an application signed copied of first 6 pages were submitted and they were taken on record vide order dated 23-9-2005 whether the signed copies were genuine or were a forgery or a subsequent manipulation is a question of fact. The onus to prove such forgery etc, could have been discharged only by the respondent because it is the respondent who alleged forgery and the respondent did not lead any evidence in this regard. Contention of counsel for the respondent is that it was responsibility of the petitioner to prove and the petitioner should stand on her own legs and cannot carry her with her merely on the ground of lack of evidence or no evidence having been led by the respondent. There cannot be any cavil with the proposition that the plaintiff has to make her case stand on its own legs and cannot rely upon weaknesses or lack of evidence of the defendant. However, in this case petitioner in her evidence clearly stated as follows

"At the time of my marriage my parents given me dowry articles worth of Rs.5,00,000. I produce my original vouchers and receipt of my dowry articles."

13. The petitioner's father appeared as supporting witness and stated that at the time of her marriage he had given his daughter dowry articles worth more than 5,00,000. He further stated that brother-in-law of the defendant Muhammad Yaseen Khan had received the same. Having B asserted these two facts the petitioner discharged her onus to prove and it was for the respondent to lead evidence in rebuttal or to shake evidence of the petitioner through cross-examination. The respondent failed to, or at least chose not to, do so and therefore, must bear consequences.

14. Family matters need a certain degree of sensitivity. Be the matter relating to child custody, dower, dissolution of marriage or any respect the Court should demonstrate due degree of sensitivity and should attempt to decide the matter at the earliest. It is unfortunate that subject matter of these Constitutional Petitions has dragged on for almost 10 years. Mandate of Constitution of the Islamic Republic of Pakistan is that where under Article 25 of the Constitution equality of all citizens is ordained it is provided that special provisions for the protection of women and children may be made. That should be the spirit in deciding family matters and interpreting family laws.

15. Learned Appellate Court had held that the petitioner has not been able to show any source of income from which the said dowry articles were purchased by her father. Unless a Court comes to the conclusion that the value claimed in the dowry articles is so disproportionable to the known sources of income of family of the bride or the items are so put of syne(sic) with the situation and standard of living of the family, in my opinion it would not be reasonable for the Family Court to require the applicant/wife before it to produce proof of income of her family. Since it is not alleged, and even if it were alleged, since the respondent has not produced any evidence, in my opinion no such burden of proving income of parents of the bride can be lumped at the door of the helpless woman. The same principle will hold true regarding an independent witness regarding purchase of dowry articles. I fully subscribe to the view expressed by Honourable

Division Bench of Peshawar High Court in Saifur Rehman's case (supra) where the complainant in her own evidence had stated value of dowry articles and had also produced her father who had fully substantiated her claim, as far as, the complainant is concerned she has discharged her burden to prove. Nothing further should be required from her and then it was for the defendant to discharge his burden.

16. As far as, 7th page of the list of dowry articles is concerned, the learned counsel for the petitioner frankly conceded that these articles cannot be included in the dowry. I have gone through the list and list includes baby clothes and baby toys. I do not think it would be unreasonable to come to a conclusion that a person would give in dowry baby's clothes and baby's toys to his daughter. Having regard to the common course of natural events and human conduct I think I would be justifying in presuming and coming to the conclusion keeping in view Article 129 of the Qanun-e-Shahadat Order 1984 that document page 7 is a list of gift items and is not included in dowry.

17. The learned counsel for the respondent has firstly relied upon the order passed by the appellate Court in the first round of litigation where the Appellate Court ordered the trial Court to pass fresh judgment keeping in view all the evidence available on record. The learned counsel stated that originally six pages were filed which were not signed and after remand the signed copies were produced. Explanation offered by the petitioner is that copies of duplicates were filed and on pointation signed copies were submitted. I have looked at those documents and they are computer print outs and keeping in view all the other evidence. I do think there was reason for the Courts below to disbelieve these documents. I am conscious of the fact that in exercise of constitutional jurisdiction the High Court should be very reluctant to enter upon questions of fact but in this case there appears to be a clear misreading of evidence and non-reading of evidence by the learned Appellate Court as well as the propositions of law stated by the Appellate Court with respect to the nature of proof in such like matters do not appear to me to be in accordance with the dictates of law and the Constitution.

18. The trial Court has decreed that either the goods be returned or an amount of Rs.4,50,000 be paid. The marriage took place in 1998 and suit for Khula' Was filed in 2000. It seems fair to allow depreciation of 20% for a period of two years i.e. 10% per year. It would be unfair after a lapse of

more than 10 years to hold petitioner only entitled to recovery of the articles because 10 years is a long period of time and many of the articles might not have been left with any value in them therefore, in my E opinion, it would be fair and reasonable if an amount of Rs.400,000 is ordered to be paid by the petitioner/husband to the respondent/wife. Both the constitution petitions are disposed of in the above terms. The parties are left to bear their own costs. «

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